THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
COURT-1

Date 15.09.2022

C.P.(CAA) No. 65 of 2020
In
C.A.(CAA) NO. 39 of 2020

In the matter of :

Mr George Samuel Liquidator of;
ALPS Leisure Holidays Private Limited

…..Applicant

Clarification

The instant application was heard and reserved for the passing of the order. It is noted that in the meeting of the secured creditors, the Small Industries Development Bank of India [SIDBI- the financial Creditor] voted against the proposed scheme of arrangement which has been proposed by the suspended management during the liquidation process of the Corporate Debtor. But, on 12.11.2020 the SIDBI has given its consent for the proposed scheme which is on the Letterhead instead of by way of an affidavit.

At para 2 (d), the Regional Director in its observation has observed that as per part III of the scheme, after properties of the ALPS (Corporate Debtor) is relinquished by the secured creditor, the same may be transferred to the name of Master Touch Concept or to mutually decided name of entity of the Mehul Thakkar. The applicant has not dealt properly with the aforesaid observation of the RD.

It is also noted that a claim of Rs. 1,37,87,520/- has been filed by the Assistant Commissioner of Income Tax, Vadodara, however, in the proposed scheme Rs. 13,93,046/- has been proposed for sundry creditors and Rs. 73,45,000/- proposed

for out-going shareholders but no amount has proposed to be paid to the Income Tax Department.

Hence, we list the matter for clarification on the aforesaid point on 20.09.2022.

SD/-	**SD/-**
Kaushalendra Kumar Singh	**Dr. Madan B. Gosavi**
Member (Technical)	**Member (Judicial)**

Ramashish